

**APPENDIX 'C' JAMAICA CONSTABULARY REVISED GRIEVANCE PROCEDURE AND POLICY
TO FORCE ORDERS NO. 3656 DATED 2017-06-29**

JAMAICA CONSTABULARY REVISED GRIEVANCE PROCEDURE AND POLICY

1. Introduction

Grievance Procedures are means of dispute resolution that can be used by a company to address complaints by employees. Grievances may be any measure of situation which concerns the relations between the employer and the employee or which may affect the conditions of employment, concerns, problems or complaints identified by an employee and must be made in writing. In some instances the settling of grievances becomes a sort of scoreboard that reinforces a negative mentality towards management by the labour force. However before using the grievance procedure it is expected that the employee/group will try to resolve their complaint informally.

A grievance procedure policy adaptable to modern policing will reduce fear of recrimination, prevent abuse and or overuse of the procedure, and increase confidence in the outcomes and boost worker morale. This Grievance Procedure Policy provides a medium where any member can have his /her grievance addressed justly and promptly.

2. Purpose and Scope

The purpose of the grievance procedure is to establish a system through which all employees may file a grievance and receive the assurance that as far as possible, grievable issues are dealt with equitably, and the resolution of such grievances secures the respect of the parties.

- 2.1 The use of the Grievance Procedure Policy shall be a means of ensuring a final settlement in a specific procedure for dealing with issues identified as grievances.
- 2.2 The existence of grievances within the organisation can have detrimental effect on service delivery. Grievances, therefore, should be resolved quickly and close to the point of origin as possible.
- 2.3 Members of staff have the right to representation at each stage of the procedure by a recognised Staff side organisation if they wish.
- 2.4 Any member who raises a grievance shall not in any way be victimised as a consequence. This is equally applicable to the respondent. However any member who abuses the spirit and aim of this policy by making malicious and spurious claims may be the subject of disciplinary proceedings as a consequence.
- 2.5 Stated timescales and results/decisions/recommendations must be adhered to by all parties. At the conclusion of the appeals process the final decision of the Management Board/Services Commission shall be the final decision and shall be adhered to by all parties.
- 2.6 Where any dubiety exists concerning the legitimacy of a grievance submission, the final decision on whether the matter progressed within the ambits of this policy shall rest with the Chair of the national Grievance Management Board.
- 2.7 All members who are parties to the grievance will be required to submit any information pertinent to the investigations into the matter.
- 2.8 Where a grievance is raised against a colleague by another, that member shall be advised of the allegations made against him/her at the earliest opportunity.

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2.9 If a related disciplinary issue shall arise at the time of the submission of the report the disciplinary charge shall take precedence over the grievance procedure and such proceedings suspended until the disciplinary matter(s) have been disposed of.

2.1.0 At all stages of the grievance procedure confidentiality shall be guaranteed to all parties as in so far as it is compatible with fair and just handling of the matter.

3 Definitions

3.1 **Adverse effect:** A decision/action is considered to have an adverse effect where it was not properly handled or resolved and resulted in bitterness on both sides in the working relations.

3.2 **Formal stage:** where written petitions are heard by a Grievance Board

3.3 **Grievance:** any discontent or dissatisfaction with any aspect of the organization

3.4 **Grievant:** The person or group of employees who bring a grievance petition

3.5 **Grievance /Conflict Management Board:** a body with authority to hear grievances

3.6 **Grievance Board chair:** The person designated by the commissioner of Police to preside over and convene all meetings of grievance hearings

3.7 **Grievance report:** A written request by an employee or group of employees for personal relief in a matter of concern or dissatisfaction relating to a grievable issue.

3.8 **The investigator:** A neutral individual appointed by the Area Commander and or the board to conduct investigations into an issue raised in a grievance. An investigator may be a member of the civilian staff with the requisite skills or a member of the Jamaica Constabulary Force with similar skills and competence. He/she should not be involved in the matter which is the subject of grievance

3.9 **Observer:** A third person who may attend pre-hearing and hearing and may be a representative from the staff associations, or an attorney without interference in the procedure.

3.9.1 **Preponderance of evidence:** a preponderance of evidence refers to a situation where the evidence which when fairly considered, produces the stronger impression and is more convincing as to the truth when weighed against other opposing evidence

3.9.2 **The respondent:** The person against whom a grievance is brought. A grievance may be brought against a supervisor who has rendered a decision/action adversely affecting against an individual or group of employees' professional capacity

3.9.3 **Secretary of the Grievance Board:** an individual identified by members of the constituted board for the accurate recordings of the proceedings

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4. Procedures

4.1 The Grievant -: A written petition of grievance must be filed in a timely manner to the chairman of the Grievance Board. The petition should state the nature of the grievance, the parties against whom the grievance is being filed and the redress being sought.

Grievance must be filed within 60 days after the results at the informal stage. The grievant should allow for sufficient use of preliminary steps which would have facilitated all attempts at the resolving the matter at the informal stage. It is the responsibility of the grievant to prove by preponderance of the evidence for the grievance. Preponderance is not determined by the number of witnesses or quantity of documents but by the greater weight of all evidence.

If the grievant does not follow the guidelines set forth in the grievance procedure, the committee may dismiss the grievance.

4.2 The respondent may respond in writing to the grievance where the Grievance Board provides him/her with the opportunity so to do

4.3 The Observer may give/ provide advice to a party before a hearing but NOT during the proceedings. The observer may prepare correspondence and other documents for a party. The presence of the observer should not be disruptive to the proceedings.

4.4 The Grievance Board Chair has the responsibility of convening and presiding over all meetings of grievance hearings. The chairman shall schedule all hearing dates and meetings, make all procedural ruling regarding the grievance process, exercise complete control over all stages of the hearing. The chairman is responsible for ensuring that the committee's work is completed and delivered in a timely manner. On completion of the hearing, the Chair is responsible for compiling the findings and recommendations of the Board and submits same to the Commissioner of Police. The Chair shall be responsible to take notes and facilitate the discussions at all meetings and submit periodic brief to the commissioner of police on the outcome of each meeting.

4.5 The Grievance Board: the establishment of a grievance Board in any organisation is a part of a sound personnel management system. The Board's role is to determine without bias whether the grievance is within the jurisdiction of the grievance board and if so to hear the grievance. The Board shall appoint a secretary from among its corps at the first meeting. The board is responsible for making written findings of fact and recommendations in keeping with these findings to the Chair. Five persons shall constitute a quorum inclusive of the Chair and Secretary. The Board shall meet at least two times per month on dates agreed on by all members or otherwise as directed by the Commissioner unless there are no matters. The Board shall ensure the timely and orderly process of grievance (attempting to dispose of the grievance within six weeks from the date of pre-hearing).

4.6 The investigator is responsible for conducting investigations impartially into an issue raised in grievance. He should submit to the area commander or the board in keeping with the place from which he/she was dispatched, a written report touching on his findings during the investigation.

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5. Constitution of Grievance Management Board

The complement of the Grievance Board shall be seven selected by the Commissioner from the JCF and its Corporate Services and or Human Resource Management as follows:

- I. Assistant Commissioner of Police
- II. Corporate Services Director or Human Resources Management Director
- III. A Senior Superintendent with operational responsibilities
- IV. Force Chaplain/counsellor or anyone acting in that capacity
- V. One female Gazetted Officer
- VI. Observer
- VII. A Senior representative of the Medical Services Branch
- VIII. The Commissioner and Deputy Commissioner of Police in charge Administer shall be ex officio members and shall have the right to attend any meeting of the Board but not to participate in the process.

Where any member of the Board is a party to the grievance, the commissioner shall name an officer of appropriate rank to replace that officer on the Board for that particular sitting.

6. Power and Authority of the Board

The Grievance Board has the authority to make the following recommendations in addressing the requests from the grievant

- Disciplinary actions against an individual
- Request apologies from an individual
- Adoption of suggestion or proposal
- Refer to the Police Services Commission

7. Reporting a grievance

To facilitate efficient determination of a grievance, the following information shall be included in a grievance submission:

- 7.1 The grievance shall be written in the form of a statement or report. It shall be in chronological order (day, date, time and place of occurrence) and contain the facts upon which it is based
- 7.2 The alleged wrongful act must be clearly stated describing the harm done to the aggrieved member and the actions sought by the aggrieved in relation to remedy or adjustment in his favour
- 7.3 The under mentioned summary information shall be contained in an appropriately designed form when submitting a grievance along with the written detailed report:
 - Consecutive number
 - Name, rank and regulation numbers of the aggrieved member
 - Day, date and time of the occurrence
 - Date submitted
 - Facts in brief
 - Specific wrongful act and harm done
 - Remedy or adjustment sought
 - Action taken
 - Remarks

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- 7.4 The following procedures are to be followed in responding to grievance:
- Acknowledge receipt of grievance report by noting the time, date and person receiving the report;
 - The divisional commander should analyze the facts or allegations (as adduced at the informal stage)
 - The divisional commander should affirm or deny in writing allegations pertaining to the outcome of the informal intervention
- 7.5 Where the respondent is the Divisional Commander then an investigator should be assigned by the Area Officer to investigate the allegations. The investigator is to conduct investigations, submit a written report within forty-eight hours from the time of receiving the report. The grievant shall not be responsible to route the grievance report through the Divisional commander but shall submit same to and through the Area Chaplaincy Unit
- 7.6 Where the results of the investigation are produced/submitted the process may take the form of any of the under mentioned:
- Informal procedure
 - Refer to National Grievance Board (Formal Procedure)

8 Grievance coverage

For the purpose of this policy matters that may be considered grievable should be related to the employment of an employee(s) which is subject to the control or the management of the Jamaica Constabulary Force:

- I. A decision which is appealable to the Commissioner e.g. removal or reduction in pay grade, denial of incremental increase;
- II. Non-selection for promotion from a group of properly ranked and qualified candidates in keeping with the Promotional Policy;